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|   |                                                     | <p>“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).)</p> <p>Here, the Complaint alleges Defendants knew their unit was suffering from severe cockroach infestations, microbial growth, plumbing leaks and structural openings that allowed pests to enter. (Complaint, ¶ 134.) Defendants were repeatedly notified of these dangerous and unsanitary conditions, but chose to ignore the complaints and/or failed to meaningfully repair or remediate the conditions. (Complaint, ¶ 135-137.) Defendants allowed the cockroach infestation to continue while collecting rent from Plaintiffs, and with a reckless disregard for the probability that Plaintiffs would suffer severe emotional distress from having to live with cockroaches. (Complaint, ¶ 138.)</p> <p>While the Complaint acknowledges Defendants’ attempts to remediate the cockroach and plumbing issues, it also alleges Defendants engaged in “superficial and ineffective responses” and allowed the conditions to persist despite repeated complaints. The cockroaches infiltrated Plaintiffs’ kitchenware, furniture, and personal belongings and even crawled into Plaintiff’s ear. Failure to effectively and promptly remediate the issues could be found to be oppressive and/or malicious.</p> <p>Accordingly, the motion to strike punitive damages allegations is DENIED.</p> <p>Clerk to give notice.</p> |
| 6 | <b>Kiani vs. Koffey</b><br><br><b>2025-01484637</b> | <b>Motion to Appear Pro Hac Vice</b><br><br>Continued. See minute order dated 6/23/26 (ROA 259).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 7 | <b>Jin vs. Bloomingdale's, LLC</b>                  | <b>CMC</b><br><b>Motion for Reclassification</b><br><b>Demurrer to Complaint</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |